



staff report 14-D

TO: Honorable Mayor and Members of the City Council

FROM: Jeffrey L. Stewart, City Manager
Tae Rhee, Director of Finance/City Treasurer

SUBJECT: Consideration and possible action to approve the Development Impact Fee Annual Report for Fiscal Year 2021-22 pursuant to Government Code § 66006.

DATE: November 28, 2022

EXECUTIVE SUMMARY

Pursuant to BMC Chapter 3.24 (Ordinance No. 1117) and Chapter 3.36 (Ordinance No. 1118), the City has been collecting the Public Facilities and Park Facilities Fees, respectively, since October 2006. Section 8.a of the Resolution No. 11-22 directs the City Manager to prepare the required annual report for these fees. Government Code § 66006 requires an annual report on these fees containing certain financial and other information for the City Council and public.

As supplemental information, the annual report incorporates similar data on the Public Arts Fee (BMC Chapter 3.32; Ordinance No. 1098). The Public Arts Fee has a unique provision in that any developer can choose to install public art on the property that is being developed instead of paying a fee to the City. Such installation of public art by a developer requires City Council approval.

RECOMMENDATION TO CITY COUNCIL

- 1) Approve the Development Impact Fee Annual Report for Fiscal Year 2021-22 pursuant to Government Code § 66006; or
- 2) Alternatively, discuss and take other action related to this item.

FISCAL IMPACT

None. The Fund balances as of June 30, 2022, were as follows:

Park Facilities Fund	\$ 1,283,694
Public Facilities Fund	162,345
Public Arts Fund	311,350

PUBLIC NOTICE

On October 31, 2022, a Public Notice was posted at City Hall, Bellflower Substation, Caruthers Park, Thompson Park, and Simms Park. In addition, Southern California Gas Company and Southern California Edison were also notified on that same day pursuant to their written request on file with the City Clerk's Office.

DISCUSSION

The City collects public facilities and park facilities fees, which are fees associated with development projects. Government Code Section 66006 requires the City to prepare an annual report that describes certain information about the fees, such as the amount of fees collected, public improvements for which the fees were expended, fund balance, and other information. In addition, Government Code Section 66001 requires the City to provide a report and make findings every five years regarding unexpended fund fees. The next five-year report is required for Fiscal Year 2025-2026.

City staff has prepared the attached annual report and recommends City Council receipt and approval.

ATTACHMENTS

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CITY OF BELLFLOWER

PUBLIC NOTICE

DEVELOPMENT IMPACT FEE ANNUAL REPORT
(FISCAL YEAR 2021-22)

Pursuant to Ordinance Nos. 1117 and 1118, the City has been collecting public facilities and park facilities fees since October 2006, and is required to report annually certain information to the City Council and public in compliance with the Government Code § 66006.

The attached annual report which has been prepared pursuant to state law is currently available at the Finance Department, City Hall 2nd Floor, 16600 Civic Center Drive, Bellflower, CA 90706. The report will be presented to the City Council for review at a public meeting on Monday, November 28, 2022, at 7:00 p.m., at the Council Chambers, City Hall 1st Floor, 16600 Civic Center Drive, Bellflower, CA 90706. The public is welcome to attend this Council Meeting and provide any relevant comments to the Council on the report.

If you have any questions regarding the reports in advance of the Council Meeting, please contact the Finance Department, 16600 Civic Center Drive, Bellflower, CA 90706, or call (562) 804-1424, extension 2239.

By: Tae Rhee, Finance Director/City Treasurer
Date: October 31, 2022

Development Impact Fee
Annual Report
(Fiscal Year 2021-22)

CITY OF BELLFLOWER

PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

This annual report section has been prepared pursuant to the requirements of Government Code Section 66006.

(A) Brief description of the type of fee in the account or fund.

Pursuant to BMC Chapter 3.36 (Ordinance No. 1118), the Park Facilities Fee is collected for the development of new and rehabilitation of existing neighborhood or community parks and recreational facilities within the City.

The objective of the Park Facilities Fee is to ensure that new development pays the capital costs associated with population growth which increases the demand for municipal services and park facilities.

(B) Amount of the fee.

A fee may be paid in lieu of or in addition to land dedication. The amount of such fee is determined by multiplying the number of acres of land which would otherwise be required to be dedicated by the fair market value per acre of the land within the proposed residential development.

Single Family Per Unit	\$21,839
Multi-Family Per Unit	\$18,288
ADUs larger than 750 s.f.	Fee proportional to primary unit

The amount of land to be dedicated is equal to .0025 acres per person multiplied by the number of persons added to the City's population by the new residential development. The number of persons added to the City's population by the new residential development is determined by multiplying the number of new dwelling units being developed by the density factor determined.

(C) Beginning and ending balance of the account or fund.

(D) Amount of the fees collected and the interest earned.

No.	Fiscal Year	Beginning Balance	Park Fac. Fees Collected	Interest earned	Other Revenue	Expenditures	Transfers	Ending Balance
16	2021-22	\$ 796,206	\$ 495,634	\$ 5,089	\$ -	\$ 13,235	\$ -	\$1,283,694
15	2020-21	\$ 669,479	\$ 344,985	\$ 3,562	\$ -	\$ 221,820	\$ -	\$ 796,206
14	2019-20	\$ 677,421	\$ 210,278	\$ 15,253	\$ -	\$ 233,473	\$ -	\$ 669,479
13	2018-19	\$ 477,879	\$ 335,857	\$ 12,874	\$ -	\$ 149,189	\$ -	\$ 677,421
12	2017-18	\$ 300,054	\$ 331,944	\$ 7,245	\$ -	\$ 161,364	\$ -	\$ 477,879
11	2016-17	\$ 230,946	\$ 132,676	\$ 3,651	\$ -	\$ 67,219	\$ -	\$ 300,054
10	2015-16	\$ 31,741	\$ 242,211	\$ 378	\$ 1,724	\$ 45,108	\$ -	\$ 230,946
9	2014-15	\$ 19,935	\$ 50,284	\$ 345	\$ -	\$ 38,823	\$ -	\$ 31,741

CITY OF BELLFLOWER

PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

No.	Fiscal Year	Beginning Balance	Park Fac. Fees Collected	Interest earned	Other Revenue	Expenditures	Transfers	Ending Balance
8	2013-14	\$ 2,917	\$ 63,505	\$ 382	\$ 500	\$ 47,369	\$ -	\$ 19,935
7	2012-13	\$ 129,260	\$ 19,631	\$ 513	\$ -	\$ 146,487	\$ -	\$ 2,917
6	2011-12	\$ 176,347	\$ 3,949	\$ 1,833	\$ -	\$ 52,869	\$ -	\$ 129,260
5	2010-11	\$ 156,155	\$ 25,533	\$ 1,527	\$ -	\$ 6,868	\$ -	\$ 176,347
4	2009-10	\$ 127,673	\$ 52,548	\$ 1,736	\$ -	\$ 25,802	\$ -	\$ 156,155
3	2008-09	\$ 143,863	\$ 63,600	\$ 4,046	\$ -	\$ 83,836	\$ -	\$ 127,673
2	2007-08	\$ 54,819	\$ 84,789	\$ 4,255	\$ -	\$ -	\$ -	\$ 143,863
1	2006-07	\$ -	\$ 53,941	\$ 878	\$ -	\$ -	\$ -	\$ 54,819
Cumulative		\$ -	\$2,511,365	\$ 63,567	\$ 2,224	\$ 1,293,462	\$ -	\$1,283,694

(E) Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.

PROJECTS IN PROGRESS:

Butterfly Garden Project

Park Facilities Fee	2021-2022	\$ 2,400	3%
Grants Projects Capital Projects Fund	2018-2022	<u>74,790</u>	97%
Total		<u>\$ 77,190</u>	100%

Thompson Park Improvements – Playground Replacement

Park Facilities Fee	2021-2022	\$ 3,841	100%
Total		<u>\$ 3,841</u>	100%

Constitution Park Improvements

Park Facilities Fee	2021-2022	\$ 6,994	100%
Total		<u>\$ 6,994</u>	100%

COMPLETED PROJECTS:

Caruthers Park Improvements / Tubular Steel Fence and Resurfacing of Courts

Park Facilities Fee	2020-2021	\$ 22,604	24%
Park Facilities Fee	2019-2020	58,204	61%
Grants Projects Capital Projects Fund	2020-2021	<u>14,109</u>	15%
Total		<u>\$ 94,917</u>	100%

CITY OF BELLFLOWER

PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

Veterans Memorial Enhancements

Park Facilities Fee	2020-2021	\$ 89,566	30%
Public Art Fee	2020-2021	179,099	61%
Public Art Fee	2019-2020	26,294	9%
Total		<u>\$ 294,959</u>	100%

Constitution Park Improvements

Park Facilities Fee	2020-2021	\$ 109,650	55%
General Fund	2020-2021	86,330	43%
Park Facilities Fee	2019-2020	4,550	2%
Total		<u>\$ 200,530</u>	100%

Simms Park Improvements

Park Facilities Fee	2019-2020	<u>\$ 141,287</u>	100%
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Aquatic Center Improvements

Park Facilities Fee	2019-2020	\$ 29,432	2%
Park Facilities Fee	2017-2019	300,053	16%
General Fund	2017-2019	289,414	15%
Public Projects Fund	2018-2020	1,268,271	67%
Total		<u>\$ 1,887,170</u>	100%

Coke Avenue Park (Planning)

Park Facilities Fee	2015-2018	<u>\$ 18,295</u>	100%
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Simms Park Fitness Center / Trail

Park Facilities Fee	2015-2017	\$ 63,873	15%
General Fund	2015-2017	53,831	12%
L.A. County Proposition A Grant	2015-2017	324,822	73%
Total		<u>\$ 442,526</u>	100%

Simms Park Playground

Park Facilities Fee	2014-2016	\$ 20,993	19%
Private Contribution (Est. Property & Cash)	2015-2016	91,724	81%
Total		<u>\$ 112,717</u>	100%

Caruthers Park Playground / Fitness Center

Park Facilities Fee	2015-2016	\$ 27,567	32%
General Fund	2015-2016	16,001	18%
Kaiser Permanente	2015-2016	43,846	50%
Total		<u>\$ 87,414</u>	100%

Zinn Park and Trail Improvements

Park Facilities Fee	2013-2016	\$ 22,230	8%
L.A. County Proposition A Grant	2013-2015	251,869	92%
Total		<u>\$ 274,099</u>	100%

CITY OF BELLFLOWER

PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

Flora Vista Dog Park Construction

Park Facilities Fee	2012-2015	\$ 55,836	16%
Economic Development Fund	2014-2015	296,533	84%
Central Basin MWD Grant	2013-2014	500	-
Total		<u>\$ 352,869</u>	100%

Palm Street Park Construction

Park Facilities Fee	2008-2013	\$ 313,862	15%
Rivers & Mountains Conservancy Grant	2012-2013	1,730,916	83%
Redevelopment Funds	2006-2011	50,862	2%
Total		<u>\$ 2,095,640</u>	100%

Note: The percentage details may not total 100% due to rounding.

(F) Identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.

For the projects that were in-progress in FY 2021-2022, the following amounts have been allocated in FY 2022-2023:

Butterfly Garden Construction (approx. start date October 2022)	\$1,227,640
Thompson Park Improvements (approx. start date February 2023)	\$ 356,083
Constitution Park Improvements (approx. start date March 2023)	\$ 581,800

(G) Description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.

There were no interfund transfers or loans.

(H) Amount of refunds made pursuant to subdivision (e) of Section 66001 (relating to the unexpended portion of the fees) and any allocations pursuant to subdivision (f) of Section 66001 (relating to the administrative costs of refunding the fees).

There were no reportable refunds nor allocations for some other purpose for which fees were collected.

CITY OF BELLFLOWER

PARK FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

Summary of Other Information from August 14, 2006 Staff Report:

<u>Park Facilities Fee Applicable to:</u> New Single Family Replacement Single Family Room Addition Second Unit Third (or More) Units Multi-Family Commercial (including Institutional) Office Industrial	Yes, if more than one unit No No Yes @ 50% Yes Yes No No No
Permitted Uses	Acquisition of new and rehabilitation of existing park and recreation facilities
Prohibited Uses	Operation and maintenance
Property Dedication In Lieu of Fee	Yes
Other Exemptions	Development restricted to low & moderate income and senior housing (fee payable when restriction lifted)
Factors Used to Determine Fee	1. Number of Dwelling Units 2. Density Factor - per Census 3. General Plan Parkland Requirement 4. Appraised value of land within development
Adjustment Factors	1. Residential Density (Census) 2. Appraised Value

CITY OF BELLFLOWER

PUBLIC FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

This annual report section has been prepared pursuant to the requirements of Government Code Section 66006.

(A) Brief description of the type of fee in the account or fund.

Pursuant to BMC Chapter 3.24 (Ordinance No. 1117), the Public Facilities Fee is collected to pay for land acquisition for, and design, engineering, and construction of, the public facilities designated in the City Council resolution and reasonable costs of related outside consultant studies.

The objective of the Public Facilities Fee is to ensure that new development pays the capital costs associated with population growth which increases the demand for municipal services and public facilities.

(B) Amount of the fee.

- | | |
|------------------------------|-------------------------------------|
| 1. Single Family Development | \$1,416 per dwelling unit |
| 2. Multi-Family Development | \$1,185 per dwelling unit |
| 3. Commercial Development | \$0.188 per square foot of building |
| 4. Office Development | \$0.227 per square foot of building |
| 5. Industrial Development | \$0.092 per square foot of building |
| 6. ADUs larger than 750 s.f. | Fee proportional to primary unit |

(C) Beginning and ending balance of the account or fund.

(D) Amount of the fees collected and the interest earned.

No.	Fiscal Year	Beginning Balance	Public Fac. Fees Collected	Interest earned	Expenditures	Transfers	Ending Balance
16	2021-22	\$ 27,935	\$ 133,843	\$ 567	\$ -	\$ -	\$ 162,345
15	2020-21	\$ -	\$ 27,875	\$ 60	\$ -	\$ -	\$ 27,935
14	2019-20	\$ 54,485	\$ 20,285	\$ 1,200	\$ 75,970	\$ -	\$ -
13	2018-19	\$ -	\$ 53,865	\$ 620	\$ -	\$ -	\$ 54,485
12	2017-18	\$ 54,360	\$ 43,912	\$ 688	\$ 98,960	\$ -	\$ -
11	2016-17	\$ 136,734	\$ 16,296	\$ 1,330	\$ 100,000	\$ -	\$ 54,360
10	2015-16	\$ 101,679	\$ 34,122	\$ 933	\$ -	\$ -	\$ 136,734
9	2014-15	\$ 89,930	\$ 10,978	\$ 771	\$ -	\$ -	\$ 101,679
8	2013-14	\$ 70,644	\$ 18,561	\$ 725	\$ -	\$ -	\$ 89,930
7	2012-13	\$ 63,702	\$ 6,266	\$ 676	\$ -	\$ -	\$ 70,644
6	2011-12	\$ 57,028	\$ 5,993	\$ 681	\$ -	\$ -	\$ 63,702
5	2010-11	\$ 49,660	\$ 6,889	\$ 479	\$ -	\$ -	\$ 57,028
4	2009-10	\$ 41,304	\$ 7,845	\$ 511	\$ -	\$ -	\$ 49,660

CITY OF BELLFLOWER

PUBLIC FACILITIES FEE ANNUAL REPORT (FISCAL YEAR 2021-22)

No.	Fiscal Year	Beginning Balance	Public Fac. Fees Collected	Interest earned	Expenditures	Transfers	Ending Balance
3	2008-09	\$ 32,351	\$ 8,001	\$ 952	\$ -	\$ -	\$ 41,304
2	2007-08	\$ 8,853	\$ 22,470	\$ 1,028	\$ -	\$ -	\$ 32,351
1	2006-07	\$ -	\$ 8,757	\$ 96	\$ -	\$ -	\$ 8,853
	Cumulative	\$ -	\$ 425,958	\$ 11,317	\$ 274,930	\$ -	\$ 162,345

(E) Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.

The Mayne Events Center and Fire Museum

		<u>Expenditures</u>	
Public Facilities Fee	2016-2020	274,930	2%
Economic Development and General Funds	2013-2019	8,063,351	73%
Lease Financing	2017-2018	200,000	2%
Proceeds from Sale of Property to L.A. County Fire Museum Association	2016-2018	650,000	6%
Public Projects Fund	2017-2020	1,866,661	17%
Total		<u>\$ 11,054,942</u>	100%

(F) Identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.

There were no public improvements that remained incomplete. The remaining fund balance may be proposed to be used towards the construction of Public Works office building.

(G) Description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.

There were no interfund transfers or loans made from the account or fund.

(H) Amount of refunds made pursuant to subdivision (e) of Section 66001 (relating to the unexpended portion of the fees) and any allocations pursuant to subdivision (f) of Section 66001 (relating to the administrative costs of refunding the fees).

There were no reportable refunds nor allocations for some other purpose for which fees were collected.

CITY OF BELLFLOWER
PUBLIC FACILITIES FEE ANNUAL REPORT
(FISCAL YEAR 2021-22)

Summary of Other Information from August 14, 2006 Staff Report:

<u>Public Facilities Fee Applicable to:</u> New Single Family Replacement Single Family Room Addition Second Unit Third (or More) Units Multi-Family Commercial (including Institutional) Office Industrial	Yes No (if sq ft increase <50%) No Yes Yes Yes Yes Yes Yes
Permitted Uses	Land or property acquisition, construction and expansion for specified public facilities (i.e., City Hall, Public Works Yard, City storage facilities, and alternative facilities for similar uses.)
Prohibited Uses	Operation and maintenance
Property Dedication In Lieu of Fee	Credit for Facilities Installed
Other Exemptions	1. Alteration/addition to existing residential structure, except addition of dwelling unit. 2. Replacement of existing residential structure without adding dwelling units. 3. Replacement of existing non-residential structure with no additional increase of area.
Factors Used to Determine Fee	1. Facility Standard a. Cost of Construction b. Cost of Land 2. Density Factor a. Residential – per Census or DOF estimate b. Non-Residential – per SCAG Study 3. Admin Fee – per study
Adjustment Factors	1. Residential Density (Census or DOF Estimate) 2. Cost of Construction 3. Cost of Land

CITY OF BELLFLOWER

SUPPLEMENTAL INFORMATION

PUBLIC ARTS FEE ANNUAL REPORT

(FISCAL YEAR 2021-22)

This report has been prepared as supplemental information to the annual report prepared pursuant to the requirements of Government Code Section 66006.

(A) Brief description of the type of fee in the account or fund.

Pursuant to BMC Chapter 3.32 (Ordinance No. 1098), the Public Arts Fee collected can be used to provide works of art in public places in order to promote the visual arts in the City of Bellflower by creating a collection of permanent outdoor art work by recognized artists throughout the City, to be of public benefit, and to present the community with a variety of art work styles and themes, all of the highest possible quality.

(B) Amount of the fee.

1% of applicable project costs.

(C) Beginning and ending balance of the account or fund.

(D) Amount of the fees collected and the interest earned.

No.	Fiscal Year	Beginning Balance	Public Arts Fee Collected	Interest Earned / Other	Expenditures	Transfers	Ending Balance
17	2021-22	\$ 120,858	\$ 196,446	\$ 914	\$ 6,868	\$ -	\$ 311,350
16	2020-21	\$ 275,672	\$ 23,252	\$ 1,033	\$ 179,099	\$ -	\$ 120,858
15	2019-20	\$ 296,109	\$ 7,332	\$ 5,603	\$ 33,372	\$ -	\$ 275,672
14	2018-19	\$ 254,490	\$ 35,230	\$ 6,389	\$ -	\$ -	\$ 296,109
13	2017-18	\$ 186,206	\$ 65,110	\$ 3,174	\$ -	\$ -	\$ 254,490
12	2016-17	\$ 163,112	\$ 21,053	\$ 2,041	\$ -	\$ -	\$ 186,206
11	2015-16	\$ 62,012	\$ 100,440	\$ 660	\$ -	\$ -	\$ 163,112
10	2014-15	\$ 38,927	\$ 41,759	\$ 522	\$ 19,196	\$ -	\$ 62,012
9	2013-14	\$ 38,895	\$ 22,850	\$ 447	\$ 23,265	\$ -	\$ 38,927
8	2012-13	\$ (8,078)	\$ 56,762	\$ 219	\$ 10,008	\$ -	\$ 38,895
7	2011-12	\$ (51,578)	\$ 43,500	\$ -	\$ -	\$ -	\$ (8,078)
6	2010-11	\$ (62,578)	\$ 11,000	\$ - / \$ 2,000	\$ 2,000	\$ -	\$ (51,578)
5	2009-10	\$ 145,725	\$ (9,500)	\$ 619	\$ 199,422	\$ -	\$ (62,578)
4	2008-09	\$ 110,035	\$ 37,500	\$ 3,190	\$ 5,000	\$ -	\$ 145,725
3	2007-08	\$ 70,252	\$ 35,744	\$ 4,039	\$ -	\$ -	\$ 110,035
2	2006-07	\$ 30,103	\$ 37,750	\$ 2,399	\$ -	\$ -	\$ 70,252
1	2005-06	\$ -	\$ 29,941	\$ 162	\$ -	\$ -	\$ 30,103

CITY OF BELLFLOWER
SUPPLEMENTAL INFORMATION
PUBLIC ARTS FEE ANNUAL REPORT
(FISCAL YEAR 2021-22)

No.	Fiscal Year	Beginning Balance	Public Arts Fee Collected	Interest Earned / Other	Expenditures	Transfers	Ending Balance
	Cumulative	\$ -	\$ 756,169	\$ 33,411	\$ 478,230	\$ -	\$ 311,350

(E) Identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.

	Expenditures Thru 2021-22	% of Costs Funded with Fees
PROJECT IN-PROGRESS:		
Bellflower Gateway Sign	\$ 6,700	100%
COMPLETED PROJECTS:		
Veterans Memorial*	205,393	70%
New Hope Temporary Shelter Mural	7,078	100%
Journey to Market	108,000	100%
Belle the Cow	106,430	100%
Colored StreetPrint/ 16922 Bellflower Blvd (Fronk's/Café Camellia)	23,265	100%
Gateway Arch	16,231	100%
Mural/Breezeway/ 16700 Bellflower Blvd (Belmont Court)	2,965	100%
Gas Pump Utility Box	2,000	100%
Total Costs Funded with Fees	<u>\$ 478,062</u>	

**The remaining 30% or \$89,566 of the Veterans Memorial Project was funded with Park Facilities Fees.*

	Expenditures Thru 2021-22	% of Costs Funded with Fees
Veterans Memorial Maintenance	\$ 168	100%
Total Costs Funded with Fees	<u>\$ 168</u>	

(F) Identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.

CITY OF BELLFLOWER
SUPPLEMENTAL INFORMATION
PUBLIC ARTS FEE ANNUAL REPORT
(FISCAL YEAR 2021-22)

Bellflower Gateway Sign (approximate project
commencement date: January 2023)

Estimated Cost: \$ 494,000

(G) Description of each interfund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an interfund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.

There were no interfund transfers or loans.

(H) Amount of refunds made pursuant to subdivision (e) of Section 66001 (relating to the unexpended portion of the fees) and any allocations pursuant to subdivision (f) of Section 66001 (relating to the administrative costs of refunding the fees).

There were no reportable refunds nor allocations for some other purpose for which fees were collected.

Other Information Regarding the Public Arts Fee:

3.32.030 Projects Subject to the Public Arts Ordinance.

A. The requirements of this chapter shall apply to the following activities:

1. All capital improvement projects where the project cost exceeds two hundred and fifty thousand dollars (\$250,000.00);
2. All commercial/industrial development projects where the project cost exceeds two hundred and fifty thousand dollars (\$250,000.00); and
3. All residential projects of more than two (2) lots or units, including single-family residential structures, condominiums, apartments, townhouses or other dwelling units, where the project cost exceeds five hundred thousand dollars (\$500,000.00).

B. Notwithstanding the foregoing, the requirements of this chapter shall not apply to the following activities:

1. Any project which consists solely of the reconstruction of structures which have been damaged by fire, flood, wind, earthquake or other calamity;
2. Any project constructed by a government agency other than the City or the Bellflower Redevelopment Agency or which is constructed on property exempt from taxation pursuant to California Revenue and Taxation Code Section 214; and
3. Single and multi-family residential remodeling.

CITY OF BELLFLOWER
SUPPLEMENTAL INFORMATION
PUBLIC ARTS FEE ANNUAL REPORT
(FISCAL YEAR 2021-22)

3.32.040 Requirement to Provide Art Work or Pay In-Lieu Contribution.

When a project is subject to the requirements of this chapter, the applicant shall provide public art by complying with one (1) of the following provisions. The choice of compliance methods shall be within the sole discretion of the applicant.

- A. Acquiring and Installing Art. The project applicant shall acquire and install art work in a public place on or in the vicinity of the project site, as approved by the City Council pursuant to this chapter. The cost or value of such work shall equal or exceed one percent (1%) of the project cost.
- B. In-Lieu Contribution. In-lieu of acquiring and installing art work, the project applicant may contribute an amount equal to one percent (1%) of the project cost to the Public Arts Fund.